

M.Chakradhar vs M.Karuna on 26 November, 2019

Author: Cheekati Manavendranath Roy

Bench: Cheekati Manavendranath Roy

HONOURABLE SRI JUSTICE CHEEKATI MANAVENDRANATH ROY

Criminal Revision Case No.528 of 2019

Judgment:

This criminal revision case arises out of the order dated 13-11-2019 passed in F.C.O.P. No.365 of 2013 on the file of Additional Family Court, Visakhapatnam, whereby a sum of Rs.5,500/- was awarded towards monthly maintenance to the 1st respondent herein.

2. Outline facts relevant to dispose of this revision case may be stated as follows:

(a) The 1st respondent herein is the legally wedded wife of the petitioner herein. Their marriage was solemnized on 14-3-1996. One daughter and one son were born to them during their lawful wedlock. Subsequently, disputes arose between the petitioner and the 1st respondent. The petitioner has harassed the 1st respondent for additional dowry and he used to subject her to torture in a drunken state and ultimately necked her out from the house after retaining all her gold ornaments.

(b) Therefore, the 1st respondent has lodged a report with the Police which was registered as a case in Crime No.229/2012 of IV Town Police Station, Visakhapatnam, for the offences under Section 498-A of IPC and Sections 3 and 4 of the Dowry Prohibition Act, 1961. As the petitioner has discarded the

1st respondent and neglected her and refused to maintain her,
she has filed F.C.O.P. No.365 of 2013 claiming maintenance of
Rs.10,000/- per month from the petitioner herein. She has also

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crllrc_528_2019 filed O.P.No.351 of 2014 under Section 9 of the Hindu Marriage Act, 1955 for restitution of conjugal rights on the ground that the petitioner herein has abandoned her company and has withdrawn from her lawful society.

(c) Both the said petitions filed for restitution of conjugal rights and also claiming maintenance were resisted by the petitioner herein. He has denied the allegations made against him that he has harassed the 1st respondent herein for additional dowry and subjected her to torture and that he has discarded her and abandoned her company and withdrawn from her lawful society.

(d) Both the said petitions i.e. F.C.O.P. No.365 of 2013 and O.P.No.351 of 2014 filed for maintenance and also for restitution of conjugal rights were clubbed together in the trial Court and common evidence was recorded in both the petitions.

(e) At the culmination of the enquiry, both the petitions were disposed of by a common order. The learned Judge allowed both the petitions granting maintenance of Rs.5,500/- per month to the 1st respondent herein towards her maintenance and also allowed the petition for restitution of conjugal rights.

(f) Aggrieved by the order passed in F.C.O.P. No.365 of 2013 granting Rs.5,500/- towards monthly maintenance to the 1st respondent herein, the petitioner herein has preferred the present revision case assailing the legality and validity of the said order. The petitioner herein did not challenge the decree of restitution of conjugal rights granted against him and in favour of CMR, J.

crllrc_528_2019 the 1st respondent herein. Therefore, in this revision case, the order of maintenance is only under challenge.

3. Heard Sri Mohammed Nawaz Hyder Ali, learned counsel for the petitioner and Sri S.V.R. Subrahmanyam, learned counsel for the 1st respondent.

4. Learned counsel for the petitioner would submit that in view of the decree passed for restitution of conjugal rights filed by the 1st respondent herein, who is his wife that the petitioner is ready to take back the 1st respondent and resume their conjugal life and as such the question of paying maintenance by him to the 1st respondent does not arise at all. He would further submit that even if the Court finds that the petitioner herein is liable to pay maintenance to the 1st respondent as ordered by the learned Judge, Additional Family Court, Visakhapatnam that the quantum of maintenance is on higher side and he submits that since the petitioner is working as a Typist in the office of Deputy Inspector General of Police and earning Rs.40,000/- only per month and as his two

grown up children, who are his daughter and son, are living with him and he has to look after their welfare that the amount granted is exorbitant and thereby prayed to reduce the quantum of maintenance amount granted to the 1st respondent.

5. Per contra, learned counsel for the 1st respondent would submit that even though common judgment was passed in both the maintenance O.P. and also in the restitution of conjugal rights petition, the petitioner has challenged only the order of CMR, J.

crllrc_528_2019 maintenance and he did not challenge the decree for restitution of conjugal rights and as such this criminal revision case is not maintainable.

6. As regards the quantum of maintenance is concerned, he would submit that as the petitioner is an employee earning not less than Rs.50,000/- per month as on today that the quantum of maintenance of Rs.5,500/- per month as ordered by the trial Court is not on higher side and it is reasonable amount and thereby prayed for dismissal of the revision case.

7. As regards the preliminary objection taken by the learned counsel for the 1st respondent that in view of the fact that common judgment was rendered in both F.C.O.P. No.365 of 2013 and O.P.No.351 of 2014 which are filed for maintenance and restitution of conjugal rights that this criminal revision case preferred only against the order of maintenance without challenging the decree for restitution of conjugal rights is not maintainable, this Court do not find any substance in the said contention. As the petitioner herein did not feel aggrieved by the decree for restitution of conjugal rights, he did not prefer any appeal against the said judgment and decree. It is also the case of the petitioner herein that in due obedience to the judgment and decree passed for restitution of conjugal rights that he is prepared to take back the 1st respondent, who is his wife and resume his conjugal life. Therefore, in the said facts and circumstances of the case, it cannot be said that this criminal revision case preferred against the order of maintenance without challenging the decree CMR, J.

crllrc_528_2019 of restitution of conjugal rights is not maintainable. The revision case is perfectly maintainable under law.

8. As regards the validity of the order passed in F.C.O.P. No.365 of 2013 granting maintenance to the 1st respondent herein is concerned, learned counsel for the petitioner would submit that when the petitioner is ready to take back the 1st respondent herein, who is his wife to resume their conjugal life in due obedience to the decree for restitution of conjugal rights that was passed, as the 1st respondent herein is not joining his company, she is not entitled to the maintenance is concerned, this Court do not find any merit in the said contention. After recording the evidence of both the parties and on proper appreciation of the same, the learned Judge came to the conclusion that the petitioner herein has discarded the 1st respondent herein, who is his wife and neglected her and that he is not providing anything towards her maintenance. So, in view of the said finding recorded by the learned Judge on proper appreciation of evidence on record, the petitioner now cannot seek to avoid payment of maintenance as ordered by the trial Court on the ground that he is now ready and willing to take back his wife and resume their conjugal life in terms of the decree for

restitution of conjugal rights that was passed against him. Therefore, as the petitioner has discarded the 1st respondent herein, who is his wife and neglected her, as a husband he is bound under law to provide maintenance to her. At this stage, it is also relevant to note that the 1st respondent as a wife also filed domestic violence case CMR, J.

crlrc_528_2019 against the petitioner herein seeking various reliefs against him, to which she is legally entitled under the Protection of Women from Domestic Violence Act, 2005. It appears that the said petition was also allowed and in that petition also, the Court therein found that the 1st respondent herein as a wife is entitled to maintenance from the petitioner herein and ordered Rs.6,500/- towards her monthly maintenance. Therefore, in the said facts and circumstances of the case, it cannot be said that the impugned order granting maintenance to the 1st respondent herein by the learned Judge, Additional Family Court, Visakhapatnam, is erroneous or legally unsustainable. In fact, the learned Judge has taken into consideration the maintenance amount of Rs.6,500/- per month that was granted to the 1st respondent herein in the domestic violence case. Apart from the said amount, the learned Judge has ordered further sum of Rs.5,500/- per month towards maintenance to the 1st respondent herein in this F.C.O.P. No.365 of 2013. It is made clear in the impugned judgment that in total i.e. Rs.5,500/- in this case + Rs.6,500/- in Domestic Violence Case = Rs.12,000/- per month is to be paid towards maintenance to the 1st respondent herein by the petitioner herein. So, this Court do not find any illegality in passing the impugned order directing the petitioner herein to pay to the 1st respondent herein the monthly maintenance.

9. Now, the next question that arises for consideration is regarding the quantum of maintenance. Learned counsel for the petitioner would submit that the petitioner is only working as CMR, J.

crlrc_528_2019 a Typist in the office of DIG of Police and he is earning only Rs.40,000/- per month towards his gross salary and after deductions, he is earning a meager amount towards his net salary. He would then submit that his two grown up children, who are his daughter and son, are living with him and he has to take care of their maintenance and also education etc. Therefore, in the said facts and circumstances of the case, it would be difficult for him to pay Rs.12,000/- in total towards maintenance both in F.C.O.P. No.365 of 2013 and D.V.C. No.5 of 2013. So, he vehemently contended that the amount of maintenance that is now ordered is on higher side and the same requires modification.

10. Opposing the said contention, learned counsel for the 1st respondent would submit that as the petitioner herein is admittedly an employee and earning on it that there are no valid grounds to modify the quantum of maintenance and reduce the same. In support of his contention, he placed reliance on the judgment of the Apex Court in Vinny Parmvir Parmar v. Parmvir Parmar¹ and also in another judgment of the Apex Court in Shailja v. Khobbanna².

11. Although the learned counsel for the petitioner contended that the 1st respondent is doing embroidery work and earning on it, the said contention is negated by the trial Court. At paragraph No.21 of the impugned judgment, the learned Judge clearly held that no evidence was adduced by the petitioner herein 1 AIR 2011 SC 2748 2 2017 LawSuit (SC) 311 CMR, J.

crlr_528_2019 to substantiate the said plea that the 1st respondent herein is doing embroidery work and earning on it. So, in the absence of any such evidence, it cannot be held that the 1st respondent is doing embroidery work and earning on it and that she got means to maintain herself. Therefore, the said contention is rejected.

12. Admittedly, the petitioner herein is an employee working as Typist in the office of DIG of Police. As per the pay slip produced by him which relates to the year 2013, his gross salary was Rs.41,065/- and his net salary was Rs.25,000/- in the year 2013. However, he did not produce the latest pay slip when F.C.O.P. No.365 of 2013 was disposed of in the year 2018 in the trial Court. The learned Judge has clearly held in the impugned judgment that the petitioner herein did not produce his latest salary slip. Therefore, the petitioner herein has very conveniently suppressed his latest salary particulars. As he was earning Rs.41,000/- in the year 2013, adding increments to the same for all these six years period, certainly there would be considerable increase in his salary. It would be not less than Rs.50,000/- per month as on this day. Even after deductions, he would be earning not less than Rs.35,000/- per month. Therefore, he got sufficient means to pay maintenance to the 1st respondent herein.

13. However, one fact that requires to be taken into consideration is that the grown up children of the petitioner herein, who are his daughter and son, are living with him. The said fact is not controverted in this criminal revision case. When admittedly his grown up children, who are his daughter and son, are living with him who are pursuing their B.Tech Degree, the petitioner herein has to meet their educational expenses and he has to look after their welfare also apart from meeting his daily needs. Therefore, in the said facts and circumstances of the case, taking into consideration the said practical difficulty which the petitioner herein may face in providing education and maintaining to his grown up children also, this Court is of the considered view that the amount of maintenance requires modification. In the facts and circumstances of the case, this Court is of the considered view that awarding a sum of Rs.4,500/- towards monthly maintenance to the 1st respondent herein in F.C.O.P. No.365 of 2013 apart from Rs.6,500/- already granted in D.V.C. No.5 of 2013 would be reasonable amount of maintenance in the facts and circumstances of the case. Therefore, the total amount of maintenance would come to Rs.11,000/- i.e. Rs.6,500/- + Rs.4,500/- = Rs.11,000/-.

14. The facts of the cases which are reported in Vinny Parmvir Parmar v. Parmvir Parmar and Shailja v. Khobbanna are distinguishable. Here is a case where the two children, who were grown up and pursuing their higher education, are residing with the petitioner herein and he is taking care of their education and welfare. This makes the difference when the facts of this case are compared with the cases which are reported in the above cited judgments.

15. So, in view of the above discussion, the impugned judgment and decree of Additional Family Court, Visakhapatnam, CMR, J.

crlrc_528_2019 in F.C.O.P. No.365 of 2013 is perfectly valid and sustainable under law. However, the quantum of maintenance is only slightly modified and reduced to Rs.4,500/- (Rupees four thousand and five hundred only) per month from Rs.5,500/- as detailed supra. The impugned judgment holds good in all other respects.

16. In the result, this criminal revision case is dismissed with the above observation. Pending applications, if any, shall stand closed.

CHEEKATI MANAVENDRANATH
ROY, J.

26th November, 2019.

Ak CMR, J.

crlrc_528_2019 HONOURABLE SRI JUSTICE CHEEKATI MANAVENDRANATH ROY Criminal Revision Case No.528 of 2019 26th November, 2019.

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